

- (b) knowingly associates with thieves or reputed thieves ;
or
- (c) refuses to give to the police all information and assistance in the power of the grantee, for the detection of crime, for the apprehension of criminals, or for the suppression of any disturbance of the public peace ;
or
- (d) enters into or continues to carry on any business, occupation or employment which is illegal, or in which the grantee has made use of the fact of former employment in the force in a manner which the Inspector-General considers to be discreditable or improper ; or
- (e) supplies to any person or publishes in a manner which the Inspector-General considers to be discreditable or improper any information which the grantee may have obtained in the course of employment in the force ; or
- (f) solicits or, without the consent of the Inspector-General, accepts directly, or indirectly, any testimonial or gift of a pecuniary value on retirement from the force, or otherwise in connection with his service in the force ; or
- (g) enters into or continues in any business, occupation, or employment as a private detective, after being prohibited to do so by the Inspector-General on any reasonable grounds.

(2) Such forfeiture and withdrawal may affect the pension or allowance wholly or in part, and may be permanent or temporary as the Inspector-General with the consent of the Treasury may determine.

CHAPTER 56.

An Act to amend the law with respect to offences against persons under the age of sixteen, and with respect to penalties under section thirteen of the Criminal Law Amendment Act, 1885, and to repeal section five of the Punishment of Incest Act, 1908. [4th August 1922.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present

- Parliament assembled, and by the authority of the same, as follows :—

Consent of
young person
to be no
defence.

1. It shall be no defence to a charge or indictment for an indecent assault on a child or young person under the age of sixteen to prove that he or she consented to the act of indecency.

Amendment
of ss. 5 and 6
of 48 & 49
Vict. c. 69 as
to defence of
reasonable
belief.

4 Edw. 7.
c. 15.

2. Reasonable cause to believe that a girl was of or above the age of sixteen years shall not be a defence to a charge under sections five or six of the Criminal Law Amendment Act, 1885 (in this Act referred to as the principal Act). The limit of time mentioned in the second proviso to section five of the principal Act, as amended by section twenty-seven of the Prevention of Cruelty to Children Act, 1904, shall be nine months after the commission of the offence : Provided that in the case of a man of twenty-three years of age or under the presence of reasonable cause to believe that the girl was over the age of sixteen years shall be a valid defence on the first occasion on which he is charged with an offence under this section.

Amendment
of penalties
under s. 13
of principal
Act.

3. Any person who is convicted of an offence against section thirteen of the principal Act (which relates to summary proceedings against brothel keepers, &c.) shall be liable on summary conviction—

(a) to a fine not exceeding one hundred pounds or to imprisonment with or without hard labour for a term not exceeding three months; and

(b) on a second or subsequent conviction, to a fine not exceeding two hundred and fifty pounds or to imprisonment with or without hard labour for a term not exceeding six months;

or, in any such case, to both fine and imprisonment.

Application
to Scotland.

4. In the application of this Act to Scotland—

(1) The following provision shall be substituted for section one of this Act :—

Any person who uses towards a girl of or above the age of twelve years and under the age of sixteen years any lewd, indecent or libidinous practice or behaviour which, if

used towards a girl under the age of twelve years, would have constituted an offence at common law, shall, whether the girl consented to such practice or behaviour or not, be guilty of an offence against this Act, and shall be liable on conviction on indictment to imprisonment with or without hard labour for a period not exceeding two years, or on summary conviction to imprisonment for a period not exceeding three months.

- (2) The section of this Act relating to amendment of penalties under section thirteen of the principal Act shall not apply, except to convictions in the sheriff court; and on conviction of any person by any other court of summary jurisdiction of an offence against the said section thirteen, such person shall be liable to a penalty not exceeding one hundred pounds or to imprisonment with or without hard labour for a term not exceeding three months, or to both such fine and imprisonment.

5. Section five of the Punishment of Incest Act, 1908 (which requires that all proceedings under that Act are to be held in camera), is hereby repealed. Repeal of s. 5 of 8 Edw. 7. c. 45.

6.—(1) This Act may be cited as the Criminal Law Amendment Act, 1922; and the Criminal Law Amendment Acts, 1885 to 1912, and this Act may be cited together as the Criminal Law Amendment Acts, 1885 to 1922. Short title and repeal.

(2) The enactments specified in the first and second columns of the Schedule to this Act shall be repealed to the extent shown in the third column of that schedule.

(3) This Act shall not apply to Ireland.

Section 6.

SCHEDULE.

Session and Chapter.	Short Title.	Extent of Repeal.
43 & 44 Vict. c. 45 -	The Criminal Law Amendment Act, 1880.	The whole Act.
48 & 49 Vict. c. 69 -	The Criminal Law Amendment Act, 1885.	The first proviso to section 5; the proviso to section 6; section 13 so far as it relates to penalties.
8 Edw. 7. c. 45 -	The Punishment of Incest Act, 1908.	Section 5.
2 & 3 Geo. 5. c. 20 -	The Criminal Law Amendment Act, 1912.	Subsection (2) and (3) of section 4.

CHAPTER 57.

An Act to make further provision with respect to the qualifications of persons proposing to become or to practise as Solicitors. [4th August 1922.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Conditions
of exemp-
tion from
preliminary
examination.
40 & 41 Vict.
c. 25.

1.—(1) A certificate of having passed a preliminary examination under the Solicitors Act, 1877, shall not be required from any person who has—

- (a) taken a degree, other than a honorary degree, in arts or law at any university to which this Act applies; or
- (b) passed the examination in responsions at Oxford, or the previous examination at Cambridge, or the matriculation or other corresponding examination at any other university to which this